

CIVIL RIGHTS COMPLAINT
42 U.S.C. § 1983

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

15CV6305

-----X
Sage-Elpha Hall, Winston
Full name of plaintiff/prisoner ID# 1411507012

Plaintiff,

JURY DEMAND

YES ☒ NO ☐

-against-
P.O. Fino #3871, Weinstein,
Beers, Rice, Reno, Vigilance,
#935466, 945458

Enter full names of defendants

[Make sure those listed above are
identical to those listed in Part III.]

Defendants.
-----X

I. Previous Lawsuits:

- A. Have you begun other lawsuits in state or federal court dealing with the same facts involved in this action or otherwise relating to your imprisonment? Yes (☒) No ()
- B. If your answer to A is yes, describe each lawsuit in the space below (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same outline.)

1. Parties to this previous lawsuit:

Plaintiffs:

Sage-Elpha Hall, Winston

Defendants:

PEOPLE OF THE STATE OF NEW YORK
P.O. Husan Abdul

2. Court (if federal court, name the district;
if state court, name the county)

Supreme Court Of Kings County

3. Docket Number: Index # 13227/2014

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4. Name of the Judge to whom case was assigned: _____

5. Disposition: (for example: Was the case dismissed? Was it appealed? Is it still pending?)

This case is still pending

6. Approximate date of filing lawsuit: March 16, 2015

7. Approximate date of disposition: the date of disposition Oct 14, 2014

II. Place of Present Confinement: OBCC 1600 Hazen St, East Elmhurst NY 11370

A. Is there a prisoner grievance procedure in this institution? Yes (✓) No ()

B. Did you present the facts relating to your complaint in the prisoner grievance procedure? Yes (✓) No ()

C. If your answer is YES,

1. What steps did you take? I write up a grievance form stating that I'm being racially profile by NYPD & Deprivation of my Indigenous Rights Resolution 1/2 of 29 June 2006.

2. What was the result? I, haven't gotten any response as of yet to my letter

D. If your answer is NO, explain why not _____

E. If there is no prison grievance procedure in the institution, did you complain to prison authorities? Yes (✓) No ()

F. If your answer is YES,

1. What steps did you take? I try speak to several captain where I am house at 3upper, approximate 8-10 C.O.

2. What was the result? None of them seems interested to help me.

III. Parties:

(In item A below, place your name in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff Sage Elphall Hall, Winston
Address 390 East 49 St Brooklyn N.Y. near [11203]

(In item B below, place the full name and address of each defendant)

B. List all defendants' names and the addresses at which each defendant may be served. Plaintiff must provide the address for each defendant named.

Defendant No. 1

P.O. Fino, 3871.
71st precinct.
P.O. Vigilance, 71st Precinct.

Defendant No. 2

P.O. Weinstein
71st Precinct
fax# 935466 71st Precinct.

Defendant No. 3

P.O. Beers
71st Precinct
fax# 945458 71st Precinct.

Defendant No. 4

P.O. Rice
71st Precinct

Defendant No. 5

P.O. Reno
71st Precinct

[Make sure that the defendants listed above are identical to those listed in the caption on page 1].

IV. Statement of Claim:

(State briefly and concisely, the facts of your case. Include the date(s) of the event(s) alleged as well as the location where the events occurred. Include the names of each defendant and state how each person named was involved in the event you are claiming violated your rights. You need not give any legal arguments or cite to cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. You may use additional 8 ½ by 11 sheets of paper as necessary.)

On July 19, 2015 approximate 1:30am an unmarked car with four men inside saw me and a friend walking on Rutland road ~~up~~ toward Albany Ave heading to an event at Albany Manor Night Club. The unmarked car stopped in the middle of the of Rutland road between Troy & Albany. I heard one of the men in the car say "hey you" come here, I ignore the voice not knowing they were talking to us. Then I ~~proceed~~^{continue} walking, the voice shouted again "Hey you" come here. I then walk up to the security at the entrance of the club got searched and went inside the club. A few minutes later the promoter of the event came to me and said theres police outside the club saying that they gonna shut the party down if I dont come outside the club, so he is asking me to go outside to talk to them. As soon as I went outside there they were the same unmarked car with 4 men inside. I ask how may I help you? They all came out ~~came~~ on the sidewalk asking me for identification at once. As I stated my name and asking to talk to one at a time they grab me up in front of everyone and force me in there unmarked car.

IV.A If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

All four men did not disclose who they ~~where~~ where and then bend my hands behind my back forcefully and then place hand cuffs very tight on my wrists. The Officers transport me to central booking with shakles on my feet that was very tight and leave scars on the back of ankles and also damage my wrists with the hand cuffs. I received treatment for my wrists and at Kings county hospital that same day.

V. Relief:

State what relief you are seeking if you prevail on your complaint.

I'm seeking justice, that these officers be removed from the force for racially profiling, abuse of power making false arrest.
I'm also seeking compensation for lost wages of me being in prison for 2 weeks in Bikers Island.
The value of my vessel lien within my index number in Kings County Clerk 13227/2014.

I declare under penalty of perjury that on Aug 1, 2015, I delivered this
(Date)
complaint to prison authorities to be mailed to the United States District Court for the Eastern District of New York.

Signed this 1 day of Aug, 2015. I declare under penalty of perjury that the foregoing is true and correct.

Sage-A R
Signature of Plaintiff

OBCC
Name of Prison Facility

1600 Hazen St #3 East Elmhurst
Hurst NY 11370

Address

1411507012
Prisoner ID#

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Q/O 388 E 49 St

Brooklyn N.Y. near [11203]

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